

How an EU Law Is Made

From Commission proposal to final adoption

A short, sourced guide for readers who want the basic structure without specialist terminology.

THE KEY IDEA

Most EU laws need Parliament and Council to agree

The European Commission usually proposes the law. The European Parliament and the Council of the EU then examine it and, under the ordinary legislative procedure, both must agree on the final text for it to become law.

Independent educational resource. Not an official EU publication.

Information checked against official EU sources listed on page 5.

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Where does an EU law start?

The process usually begins before a draft law appears in Parliament or the Council. The Commission develops a proposal, gathers evidence and may ask citizens and stakeholders for input.

1 A policy idea

The European Commission has the right of initiative in most areas. It can act on its own political priorities or respond to requests from the European Council, the Council of the EU, the European Parliament or a successful European Citizens' Initiative.

(European Commission, n.d.-a)

2 Preparation and feedback

For important initiatives, the Commission can assess likely economic, social and environmental effects. Citizens, businesses, public authorities and civil society can also contribute through consultations and feedback.

(European Commission, n.d.-a)

3 A formal proposal

Once the College of Commissioners agrees, the Commission publishes the proposal and sends it to the European Parliament and the Council. National parliaments also receive proposals so they can examine whether action is better taken at EU level.

(European Commission, n.d.-b)

Parliament and Council become co-legislators

Under the ordinary legislative procedure, Parliament and the Council examine the same proposal. Both can change it, and both ultimately need to accept the same text.

COMMISSION

Proposal

The Commission sends the proposal to Parliament and the Council.

PARLIAMENT

First-reading position

Parliament examines the proposal and may approve it, amend it or reject it.

COUNCIL

First-reading response

If the Council accepts Parliament's position, the law is adopted. If not, the Council adopts its own position and the file moves to second reading.

WHAT ABOUT TRILOGUES?

Negotiation often happens before the formal vote

Parliament, the Council and the Commission often hold informal interinstitutional negotiations known as trilogues. They are used to look for a compromise text. If Parliament and the Council reach an informal agreement early enough, a file can be adopted at first reading rather than going through every possible stage.

(European Parliament, 2025; European Commission, n.d.-b)

The formal procedure allows up to three readings, but many files are agreed earlier.

Second reading, conciliation and adoption

The later stages exist for cases where Parliament and the Council cannot agree at first reading. They are part of the same ordinary legislative procedure.

SECOND READING

Parliament reviews the Council's position

Parliament can approve it, reject it or propose amendments. If the Council accepts Parliament's amendments, the law is adopted.

CONCILIATION

A joint committee tries to find a compromise

If the Council cannot accept all of Parliament's second-reading amendments, a Conciliation Committee brings together equal numbers of Council and Parliament representatives. The Commission also takes part.

THIRD READING

Parliament and Council vote on the joint text

If conciliation produces a joint text, both institutions must approve it. If they do, the act is adopted. If conciliation fails, or either institution rejects the joint text, the proposal is not adopted.

REMEMBER

Ordinary legislative procedure does not mean every EU decision. The Treaties also provide special legislative procedures and non-legislative acts for specific situations.

(European Commission, n.d.-b)

References

APA-style references to the official institutional pages used in this briefing. Web pages without a clear publication date are listed as n.d.

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